



CERTAMARIS LEGAL DOCUMENT SYSTEM

Mutual Non-Disclosure Agreement

Two-way confidentiality agreement for business, technical and commercial discussions.

DOCUMENT ID

CM-LEGAL-13

VERSION

1.0

ISSUE DATE

23 August 2026

STATUS

CONTROLLED EXECUTION TEMPLATE

DOCUMENT OWNER

Legal / Commercial

APPROVER

Authorized CertaMaris Signatory

DOCUMENT PURPOSE / KEY MESSAGE

Provides a mutual NDA for evaluations, negotiations, partnerships, procurement, diligence and other bilateral confidential discussions.

EFFECTIVE

Upon authorized execution

CLASSIFICATION

CONFIDENTIAL - LEGAL

LEGAL STATUS

Purpose, Scope and Controlled Use

Two-way confidentiality agreement for business, technical and commercial discussions.

This document has been populated with CertaMaris standing business, platform, security, privacy, AI and commercial positions. It remains a reusable execution template because the actual counterparty, transaction, fees, dates, signatures, jurisdictional corporate particulars or other deal-specific facts vary by engagement. Those fields must be completed before execution.

CertaMaris standing facts used by this document

- Service model: negotiated business-to-business contracts; no consumer or self-service signup model is assumed by these documents
- Platform: browser-based B2B maritime cybersecurity, compliance, assurance, risk-intelligence and operational-resilience SaaS platform
- Customer owns Customer Content; CertaMaris receives only rights needed to provide, secure and support the Services.
- High-sensitivity cyber posture and vessel/facility technical content is treated as Customer Confidential Information.
- Security reporting: security@certamaris.com
- Procurement/legal-document requests: <https://certamaris.com/contact?intent=procurement>

Transaction-specific fields intentionally left for execution include the actual CertaMaris legal entity and formation jurisdiction (if not already established in the Order Form), counterparty identity, addresses, signatory names/titles, signature dates, commercial scope/fees, and any negotiated governing-law or venue choice.

TERMS / NOTICE

Operative Provisions

CertaMaris-specific standing content for this controlled release.

1. Purpose and Parties

The applicable transaction document identifies parties and permitted evaluation/business purpose. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

2. Confidential Information

Each party will protect the other's Confidential Information using at least reasonable care and will use it only to perform or exercise rights under the Agreement. Customer vulnerability findings, network-zone maps, remote-access pathways, technical inventories, cyber plans and actual security posture are Customer Confidential Information. CertaMaris methodology, non-public product architecture, security materials and commercial terms are CertaMaris Confidential Information. Standard exclusions apply for information lawfully public, previously known without duty, independently developed, or rightfully received from a third party. Confidentiality duties continue for five years after disclosure or termination; trade secrets remain protected for so long as they qualify as trade secrets under applicable law. Required legal disclosures are permitted with notice where lawful.

3. Exclusions

Public, previously known, independently developed and properly third-party-sourced information. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

4. Use and Protection

Limit use to purpose and require reasonable protection / need-to-know access. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

5. Permitted Recipients

Employees, contractors, advisors and affiliates subject to confidentiality. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

6. Compelled Disclosure

Require notice where legally permitted and minimum necessary disclosure. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

TERMS / NOTICE

Operative Provisions

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7. Return or Destruction

Provide return/destruction on request subject to backups/legal holds. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

8. No License / No Obligation

Clarify no IP license and no obligation to proceed. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

9. Term and Survival

The applicable instrument states agreement term and confidentiality survival / trade-secret treatment. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

10. Remedies

This section addresses injunctive relief and other available remedies. CertaMaris and the counterparty will apply this requirement consistently with the Agreement, CertaMaris security and data-classification controls, and applicable law. Transaction-specific names, amounts, dates, territories, deliverables, approvals and jurisdictional choices are completed in the Order Form, SOW, schedule, notice or execution block as applicable rather than pre-populated in this reusable form.

11. Governing Law

Operational notices may be sent through the Services or business email contacts. Formal notices of material breach, termination or legal process must use the notice details in the applicable Order Form or executed agreement and may also be routed through <https://certamaris.com/contact?intent=procurement> for triage. The applicable Order Form controls governing law and venue. If it is silent, the Agreement is governed by the law of the U.S. state in which the CertaMaris contracting entity identified in that Order Form is organized, without regard to conflicts rules, and exclusive venue lies in the state and federal courts located in that jurisdiction. The parties may agree to arbitration, jury waiver or another forum in the Order Form; no separate mandatory consumer arbitration regime is created by this baseline.

12. Signatures

This instrument may be executed in counterparts and by electronic signature to the extent permitted by law. The CertaMaris signatory must be authorized under the company's then-current delegation of authority. Counterparty names, addresses, signatory names/titles and signature dates are completed at execution and are intentionally not pre-populated in the reusable template.

DOCUMENT CONTROL

Execution, Publication and Revision Record

Reusable records remain controlled; customer/counterparty signatures are completed only for the actual transaction.

CONTROL FIELD	VALUE
Version	1.0
Issue date	23 August 2026
Status	CONTROLLED EXECUTION TEMPLATE
Effective	Upon authorized execution
Document owner	Legal / Commercial
Approver / execution authority	Authorized CertaMaris Signatory
Review trigger	Material legal, provider, privacy, security, jurisdiction, service-model or commercial change

Execution / approval record

CERTAMARIS AUTHORIZED SIGNATORY / APPROVER

Legal entity / role: _____

Name / title: _____

Signature / decision: _____

Date: _____

COUNTERPARTY / SECOND APPROVER AS APPLICABLE

Legal entity / role: _____

Name / title: _____

Signature / decision: _____

Date: _____